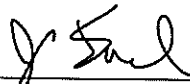


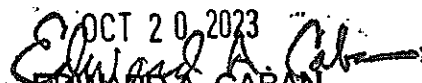
FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, August 9, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2020-22520 against Police Officer Kevin Padilla, Tax Registry No. 959868. The case was conferenced on June 13, 2023, before Deputy Commissioner of Trials Jeff S. Adler who approved the negotiated penalty of a Command Discipline Schedule A and a forfeiture of Five (5) vacation days, after Police Officer Kevin Padilla accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated August 19, 2020. Charges and Specifications are dismissed for plea purposes.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

OCT 20 2023

EDWARD A. CABAN
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2020-22520BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, PADILLA	FIRST KEVIN	M.I.	COMMAND HOUSING PSA 2 ==>SATHOPS-B/N
SHIELD NO. 16328	TAX REGISTRY NO. 959868	SOCIAL SECURITY NO.	DATE APPOINTED 10/07/2015	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
1 . Police Officer Kevin Padilla, on or about May 18, 2019, at approximately 0200, while assigned to PSA 2 and on duty, in the vicinity of Hinsdale Street and Sutter Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Kevin Padilla, on or about May 18, 2019, at approximately 0200, while assigned to PSA 2 and on duty, in the vicinity of Hinsdale Street and Sutter Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	
3 . Police Officer Kevin Padilla, on or about May 18, 2019, at approximately 0200, while assigned to PSA 2 and on duty, in the vicinity of Hinsdale Street and Sutter Avenue, Kings County, abused his authority as a member of the New York	DISMISSED	

DC Brachino
FIRST DEPUTY COMMISSIONER

10/2/23
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

10/20/23
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2020-22520
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, PADILLA	FIRST KEVIN	M.I.	COMMAND HOUSING PSA 2 ==>SATHOPS-B/N
SHIELD NO. 16328	TAX REGISTRY NO. 959868	SOCIAL SECURITY NO.	DATE APPOINTED 10/07/2015	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
City Police Department, in that he searched § 87(2)(b) without sufficient legal authority.		
4 . Police Officer Kevin Padilla, on or about May 18, 2019, at approximately 0200, while assigned to PSA 2 and on duty, in the vicinity of Hinsdale Street and Sutter Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.	DISMISSED	
5 . Police Officer Kevin Padilla, on or about May 18, 2019, at approximately 0200, while assigned to PSA 2 and on duty, in the vicinity of Hinsdale Street and Sutter Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he strip-searched § 87(2)(b) in that § 87(2)(b) private parts were exposed without sufficient legal authority.	DISMISSED	

DC Bratino
FIRST DEPUTY COMMISSIONER

10/2/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

10/20/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 11, 2023

Re: CCRB Case No. 201904359 (Incident Date: May 18, 2019) involving Sergeant Godwin Ngai, Tax No. 954175 (DADS No. 2020-22519), and Sgt. Kevin Padilla, Tax No. 959868 (DADS No. 2020-22520)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendations of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving the above officers and has determined that their actions did not reflect the alleged misconduct, and therefore, no disciplinary action is warranted.

In this case Sergeant Padilla and his partner Sergeant Ngai were in an unmarked vehicle when Sergeant Padilla observed the complainant holding a clear Ziploc bag, containing a clear rocky substance, from approximately twenty feet away. Sergeant Padilla stated that prior to this he had been involved in over fifty (50) narcotics-related arrests, and based on his training and experience, he believed the item to be crack cocaine. Sergeant Padilla stated they stopped the complainant and informed him why he was stopped. The complainant stated he did not have any narcotics on his person and the officers could search him if they wanted. Sergeant Padilla believed he received consent, and conducted a frisk and search of the complainant. During this encounter, the complainant suddenly and unexpectedly lowered his pants, but at no point was he instructed to do so by the officers. This is corroborated by cell phone video taken by an uninvolved witness. At the end of this encounter, both Sergeant Padilla and Sergeant Ngai failed to provide the complainant with a business card.

With respect to Sergeant Padilla's stop of the complainant, based on the facts and circumstances disclosed in this investigation, and relevant video evidence, the Police Commissioner believes there was enough information for an experienced officer to conduct a stop for possession of a controlled substance. Additionally, with respect to the frisk and search charge against Sergeant Padilla, there is no reason to discredit Sergeant Padilla's testimony that the individual voluntarily consented to be frisked and searched.

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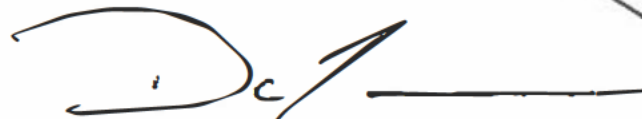
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Also, in regard to failing to provide a business card, the Police Commissioner agrees that both officers should have provided the complainant with a business card. The Police Commissioner agrees this specification should be dismissed and intends to issue training,

Lastly, with respect to the allegation, against both officers regarding a strip search without sufficient legal authority, the Police Commissioner does not intend to issue discipline. The video evidence depicts the complainant pulling down his pants on his volition and there are no determinative facts to indicate otherwise. During CCRB's settlement conference with Assistant Deputy Commissioner, Trials, Paul Gamble, CCRB stated "it appears as though the complaining witness did pull down the outer part of his pants and another athletic pants on his own; so that is why we have come to the conclusion of recommending this mitigated penalty."¹

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter for both officers and Sergeant Ngai and Sergeant Padilla will receive formalized training in Administrative Guide 304-11 (Compliance with New York City Right to Know Act/Business Card), and no disciplinary action with respect to the other allegations.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a long horizontal line extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.

¹ See New York City Police Department, Deputy Commissioner of Trials Transcript, October 6, 2022 (10:26 a.m.), Police Officer Godwin Ngai, page 5.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

October 19, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 201904359 (Incident Date: May 18, 2019) involving Sergeant Godwin Ngai, Tax No. 954175 (DADS No. 2020-22519), and Sgt. Kevin Padilla, Tax No. 959868 (DADS No. 2020-22520)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 11, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in these matters as to both officers, and that Sergeant Ngai and Sergeant Padilla will receive formalized training in Administrative Guide 304-11 (Compliance with New York City Right to Know Act/Business Card), and no disciplinary action with respect to the other allegations. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that in this case Sergeant Padilla and his partner Sergeant Ngai were in an unmarked vehicle when Sergeant Padilla observed the complainant holding a clear Ziploc bag, containing a clear rocky substance, from approximately twenty feet away. Sergeant Padilla stated that prior to this he had been involved in over fifty (50) narcotics-related arrests, and based on his training and experience, he believed the item to be crack cocaine. Sergeant Padilla stated they stopped the complainant and informed him why he was stopped. The complainant stated he did not have any narcotics on his person and the officers could search him if they wanted. Sergeant Padilla believed he received consent and conducted a frisk and search of the complainant. During this encounter, the complainant suddenly and unexpectedly lowered his pants, but at no point was he instructed to do so by the officers. This is corroborated by cell phone video taken by an uninvolved witness. At the end of this encounter, both Sergeant Padilla and Sergeant Ngai failed to provide the complainant with a business card.

Deputy Chief Marino further stated, with respect to Sergeant Padilla's stop of the complainant, that based on the facts and circumstances disclosed in this investigation, and relevant video evidence, the Police Commissioner believes there was enough information for an experienced officer to conduct a stop for possession of a controlled substance. CCRB disagrees with your recommendation.

Sergeant Padilla stated he observed § 87(2)(b) the complainant in this case, from a distance of at least 20 feet, walking on the sidewalk, at the corner of Sutter Avenue and Hinsdale Street in

Brooklyn, at 2:00 a.m. in the morning, holding what appeared to be a small clear Ziplock bag, equivalent to the size of a coin, containing a white rocky substance in one of § 87(2)(b) hands, specifically between two fingers, and to the side of his body. Sergeant Padilla stated he observed § 87(2)(b) for approximately less than one minute, and that based on this quick observation, both Sergeant Padilla and Ngai stopped § 87(2)(b). Upon stopping § 87(2)(b) neither officer saw § 87(2)(b) holding anything in his hands, or fingers. Sergeant Padilla stated that he did not see § 87(2)(b) reach inside his pockets, or drop anything on the ground, nor did he recall seeing any civilians walking in close proximity to § 87(2)(b). Sergeant Padilla further stated that he took his eyes off § 87(2)(b) for a few seconds while exiting from the vehicle, and that it was possible § 87(2)(b) might have discarded the Ziplock bag. However, both Sergeants Padilla and Ngai looked around the sidewalk where § 87(2)(b) stood, but did not find the Ziplock bag, any coin sized bag, or any bag containing any white rocky substances, or containing any narcotics. The lack of any evidence of contraband notwithstanding, Sergeant Padilla still frisked and searched § 87(2)(b) even though he lacked a clear showing of reasonable suspicion.

While Deputy Chief Marino states that Sergeant Padilla believed he received consent from § 87(2)(b) and therefore conducted a frisk and search of the complainant, he also stated that ultimately, neither he nor the other officers present at the scene did not need § 87(2)(b) consent before searching him because they had probable cause to arrest him for narcotics possession based on Sergeant Padilla's earlier observations, and that absent § 87(2)(b) consent, he would have questioned him further before searching him. This statement by Sergeant Padilla was clearly erroneous as there were no narcotics, or even any weapons, found on § 87(2)(b) based on the initial frisk. As such, there was no reason to conduct any post frisk searches of § 87(2)(b) given there was no arrest or summons being issued to him, and he never consented.

With respect to the allegation against both officers regarding a strip search without sufficient legal authority, Deputy Chief Marino states the video evidence depicts the complainant pulling down his pants on his volition and there are no determinative facts to indicate otherwise. § 87(2)(b) was wearing sweatpants at the time of the incident that were slightly lowered beneath his waist. Underneath the sweatpants, he was wearing long red athletic undershorts underneath which were partially exposed. Sergeant Padilla searched § 87(2)(b) inner garment waist band and then moved his hands around § 87(2)(b) buttocks on the outer layer of his undershorts. Given the number of officers surrounding him along with the duration of the search of his waist area undergarments, § 87(2)(b) felt coerced and compelled to lower his pants in order to prove he did not have any contraband on him, and to end the intrusive search.

As to Sergeant Ngai, at the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. Today, the CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If the CCRB were to resolve these cases today, and the respondents were to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself. As to Sergeant Padilla, please note the negotiated penalty was one mandated by the Disciplinary Matrix, as the CCRB took into account the nature of the incident when choosing the penalty. While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you impose the penalty and ADCT Paul Gamble's findings that the negotiated forfeiture of five (5) vacation days is a fair and reasonable way to address the misconduct in this case. It is requested that you impose CCRB's plea agreement, which was also agreed to with both Sergeant Ngai and Sergeant Padilla's attorney, John Tynan, to the Schedule Command B Discipline and the Schedule Command A Discipline and forfeiture of five (5) vacation days, respectively.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Jonathan Darche", is positioned above a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.